

benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 19, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-01038

CASE NAME: DELVAN KITCHING VS. CARYN CASS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: KITCHING, DELVAN

TENTATIVE RULING:

Summary

The following discovery motion is scheduled to be heard on by the Court on January 14, 2026 at 9:00 a.m. in Department 16:

1. Plaintiff Delvan Kitching's ("Plaintiff's") Motion to Compel Further and Amended Responses to Request for Production of Documents, Set One and for Sanctions from Defendant Cary Cas ("Defendant");

The Court also has scheduled hearings on the following discovery motions in Department 16 on January 21, 2026 at 8 2026 at 9:00 a.m.:

2. Plaintiff's Motion to Compel Further and Amended Responses to Form Interrogatories, Set One and for sanctions against Defendant.
3. Plaintiff's Motion to Compel Plaintiff's Motion to Compel Further and Amended Responses to Request for Admissions, Set One and for Sanctions against Defendant.
4. Plaintiff Motion to Compel Further and Amended Responses Special Interrogatories, Set One, and for Sanctions against Defendant.

The Court **vacates** all four (4) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

In this action, Plaintiff Delvan Kitching seeks relief from Defendant Caryn Cass for the following causes of action: breach of partnership, specific performance, damages based upon breach of express

contract, constructive trust, declaratory relief, fraud, intentional and negligent infliction of emotional distress, partition, breach of fiduciary duty, unjust enrichment, conversion, breach of implied covenant of good faith and fair dealing and quantum meruit. These theories relate to real properties located in Richmond and Napa, California.

The Parties are former romantic partners. The Parties are presently involved in an ongoing Domestic Violence Restraining Order trial before the Family Law Division the Court in Case No D23-01814. They are unable to cooperate on most issues, given the intensity of the disputes in their family law litigation.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C.

Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions. On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

Here, the Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, requires discovery reference pursuant to Cal. Code of Civ. Proc. Section 639(a)(5), which states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are four (4) pending discovery motions on calendar in the matter, scheduled for January 14, 2026, January 21, 2026. These motions and opposition filed to date consists of over six hundred (600) pages. The Court further finds that, based on the intensity of the disputes, the former romantic relationship between the Parties, and the pending domestic violence restraining order trial involving the Parties, Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the

applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

The Court appoints a Discovery Referee. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on January 14, and January 21, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are **vacated** from Department 16 calendar and are referred for further hearing to the Discovery Referee.
2. By no later than January 23, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by January 23, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Tuesday, January 27,, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for January 14 and January 21, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.